

The Return Regulation will ‘ICE-ify’ the EU’s migration policy

Davide Colombi, Center for European Policy Studies, 26 March 2026

Europe is drawing on the US playbook on migration enforcement – precisely as that playbook’s costs are now becoming abundantly clear. It’s doing so on a misleading premise, without addressing how migrants’ irregularity is produced in the first place.

On 26 March, the European Parliament voted in plenary on the proposed Return Regulation, with 389 votes in favour, 206 against and 32 abstentions. The report by rapporteur Malik Azmani (Renew Europe) – already much more punitive than the Commission proposal – had previously been voted down in the LIBE Committee. An EPP-backed alternative passed with support from the ECR, Patriots for Europe and ESN, marking yet another collapse of the von der Leyen majority in the Parliament.

With trilogue negotiations now due to begin and a Council general approach that goes even further, the direction of travel is clear.

The Return Regulation is a decisive acceleration in a long-running direction: detection operations inside EU territory, expanded detention (including for children), forced deportation across a wide range of cases, cooperation penalties penalties, return hubs in third countries that people may not have a connection with, and entry bans stretching to 10 years or more – with the Council now pushing for home raids.

Europe on ICE

While some European political groups have condemned the US’ Immigration and Customs Enforcement (ICE), others are voting to replicate its logic here.

During the recent Milan-Cortina Olympics, some groups declared that it wasn’t acceptable for ICE agents to operate on European soil. These sentiments were linked to Renee Nicole Good and Alex Pretty’s murders Pretti’s murders in Minneapolis in January 2026, alongside 32 other people who died at ICE’s hands in 2025.

Notably silent were the EPP, ECR, Patriots and ESN – the same majority that days later passed the revised report on the Return Regulation through LIBE.

For the European right, ICE’s actions aren’t a warning. The ‘ICE-ification’ of Europe is the clear goal. And, if what’s happening in the US is anything to go by, the result will be less security for all of us – EU and non-EU citizens alike.

ICE deployments have cost cities millions, stretched police departments thin and driven people away from medical care, food programmes and schools – harm that could take years to reverse.

The 20% myth

Under pressure from Member States and with no impact assessment, the Commission paved the way for this Regulation on a completely misleading premise: only around 20 % of migrants who receive a return order are removed from EU territory. This can only mean the system is broken and more 'innovative' solutions are needed.

But the statistic hides more than it reveals. Some individuals are counted more than once across Member States. Return orders are issued where removal was never legally or practically feasible – be it because of pending appeals, health conditions, family ties or non-cooperation from the country of origin. The low enforcement rate reflects, in large part, legal constraints that no reform can override.

Recent research from the EU-funded I-CLAIM project adds a structural dimension: 'irregular migration' isn't just a border or asylum issue.

People fall into irregular status through European rules operating normally: a permit tied to a single employer that lapses when the job ends; an income threshold missed after a difficult year; a family breakdown that removes the legal basis for residence.

In various labour sectors, employer-tied permits convert migration control into labour discipline. Workers who risk losing their status by changing jobs cannot assert their rights, refuse unsafe conditions or organise. The constant threat they'll be deported is an economic feature – not an accident.

What the Regulation actually does

The Return Regulation doesn't merely tighten return procedures. It shifts migration policy towards policing and coercion.

The Commission's original proposal included expanded provisions allowing enforcement authorities to detect undocumented people inside EU territory. The Azmani report deleted them. The Council's general approach goes further, endorsing home raids and searches of 'other relevant premises'. The EPP's François-Xavier Bellamy didn't oppose including such provisions in the final text.

Detection on EU territory means identity checks, workplace inspections with a migration focus, and home raids. Where enforcement enters workplaces, workers who fear detection won't report wage theft, unsafe conditions, labour exploitation or trafficking. Racialised communities bear a disproportionate burden, with racial profiling being further normalised across the EU.

A PICUM and Médecins du Monde report warns that the Regulation could allow for the sharing of medical data across authorities and with third countries for deportation purposes. This means people will simply stop seeking the care they need.

The cooperation obligation is among the most troubling provisions. It requires individuals – including vulnerable ones – to cooperate with a system designed to detain, sanction and remove them. This applies even to those recognised as non-removable: people who cannot be expelled because of fundamental rights reasons, health conditions or non-cooperation from their country of origin. They would be sanctioned for failing to facilitate a removal that cannot legally take place.

There's another way...

Nothing in the Regulation addresses what causes irregularity. There's no pathway for people in administrative limbo. No firewall that protects access to basic services. And there's nothing about regularisation.

If policies lead people into irregularity, and the only available solution is return, irregularity will only become more prevalent – and with it, precarious living and working conditions, labour exploitation and fundamental rights violations.

As the file moves into trilogue negotiations, the following four issues should be considered.

First, immigration enforcement must be separated from essential services – healthcare, education, labour inspections – so that accessing your rights doesn't trigger expulsion. This is a precondition for effective public health, worker protection and fundamental rights.

Second, fix the cooperation trap. Being sanctioned for non-cooperation mustn't apply to people who are non-removable. Penalising someone for failing to facilitate their own expulsion that cannot lawfully occur is disproportionate, legally dubious and counterproductive.

Third, address the root causes. The Regulation should be accompanied by a commitment to decouple residence permits from single employers, expand regularisation pathways and reform the income and family reunification rules that cause *irregularised* people in the first place.

Fourth, consider alternatives to return. Spain's recent regularisation process has been politically controversial – but it does precisely what this Regulation claims to do. Alternatives exist, have also been used by centre-right governments, and would reduce irregularity while complying with fundamental rights, unlike the Regulation's enforcement-first approach.

Europe has a choice: either double down on US-style enforcement that's expensive, legally fragile and inconsistent with its own stated objectives – or start from being honest about why irregularity exists and what could actually reduce it without having to compromise the EU's own founding values.